PLANNING APPLICATION

Community and Economic Development Department
Planning Division
1666 North Main Street, Walnut Creek, CA 94596
(925) 256-3558 *information* (925) 256-3500 *fax*
www.walnut-creek.org *website*

Staff	*For Staff Use Only*	DRC

Work Order #: _____
Parcel Map #: _____
Total Deposit Fee: $ _____
Receipt #: _____
Received By: _____

APPLICANT: PLEASE PRINT CLEARLY AND FILL IN ALL APPLICABLE SECTIONS

TYPE OF APPLICATION (Mark all that apply):

TENTATIVE MAP
❑MAJOR SUBDIVISION ❑CONDO CONVERSION
❑MINOR SUBDIVISION SUB #: _____

DESIGN REVIEW
❑COMMERCIAL ❑RESIDENTIAL ❑OTHER
❑SIGN DESIGN REVIEW ❑ANTENNAS

Housing
Does the project include demolition, currently or in the past 5 years, of residential units? If yes, refer to handout. Yes ☐ No ☐

❑GENERAL PLAN AMENDMENT
❑ZONING AMENDMENT (REZONING)
❑CONDITIONAL USE PERMIT
❑MINOR USE PERMIT
❑ADMINISTRATIVE USE PERMIT
❑VARIANCE
❑CANNABIS OPERATOR'S PERMIT

❑TREE REMOVAL PERMIT
❑HOME OCCUPATION AT ZONING ADMINISTRATOR
❑DRIP LINE ENCROACHMENT
❑HILLSIDE PERFORMANCE STANDARDS
☒OTHER: SB330

PROJECT NAME: 1426 S MAIN RESIDENTIAL & RETAIL EXPANSION

PROJECT SITE ADDRESS: 1426 S MAIN STREET, WALNUT CREEK CA

PROJECT DESCRIPTION: ADDING RESIDENTIAL UNITS & ADDING GROUND FLOOR RETAIL.

CURRENT ZONING: CR: CENTRAL RETAIL **CURRENT GENERAL PLAN DESIGNATION:** GR: GENERAL RETAIL

TOTAL LOT SIZE: 22,216 **SQUARE FEET** _____ **ACRES** ☒**REMODEL** ❑**NEW CONSTRUCTION**

Is the project located on a site which is included on any of the lists specified in Government Code §65962.3 relating to hazardous waste? Please refer to www.calepa.ca.gov/sitecleanup/corteselist/sectionA.htm to determine your site's status.
❑ Yes
☒ No

APPLICANT CONTACT INFORMATION:
NAME: HAMED ADIB
COMPANY: _____
ADDRESS: 1426 S MAIN STREET
CITY, STATE: WALNUT CREEK, CA ZIP: 94596
PHONE #: _____ FAX #: _____
CELL #: 925.212.8609 EMAIL: HADIB@ADIBLAW.COM

❑ OWNER ❑ ARCHITECT
❑ ENGINEER ☒ OTHER: COUNSEL

BILLING STATEMENTS WILL BE MAILED TO:
NAME: HAMED ADIB
COMPANY: _____
ADDRESS: 1426 S MAIN STREET
CITY, STATE: WALNUT CREEK CA ZIP: 94596
PHONE #: _____ FAX #: _____
CELL #: 925.212.8609 EMAIL: HADIB@ADIBLAW.COM

❑ OWNER ❑ ARCHITECT ☒ APPLICANT
❑ ENGINEER ❑ OTHER:

PROPERTY OWNER OR AGENT AUTHORIZATION:
NAME: HAMED ADIB
COMPANY: _____
ADDRESS: 1426 S MAIN STREET
CITY, STATE: WALNUT CREEK CA ZIP: 94596
PHONE #: 925.212.8609 FAX #: _____
EMAIL: HADIB@ADIBLAW.COM

CHOOSE ONE:
❑ I am the property owner and hereby authorize the filing of this application.
☒ I am the applicant and am authorized by the owner to file this application.

ORIGINAL SIGNATURE REQUIRED:
SIGNATURE: _____
DATE: 9/23/2021

STATEMENT OF UNDERSTANDING

Community and Economic Development Department
Planning Division
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For Staff Use Only

Work Order #: _____
Project Address: _____
APN: _____

READ AND SIGN BY PERSON AUTHORIZED TO GUARANTEE PAYMENT

Hourly Rate:

I understand that charges for staff time spent processing this application will be based on the Council-approved fee schedule. See attached pages from council approved fee schedule for current hourly rates. Charges for staff time apply to the processing of all development applications and appeals, such as General Plan amendments, Zoning Ordinance amendments, use permits, subdivisions, design review, environmental review, house moving and all other development review processing.

Fees & Deposits Schedule:

The 2020-2021 Fees & Deposits schedule has been updated to include Master Fee Schedule changes approved by City Council and effective September 7, 2020. Please review the new schedule for a complete list. Within that list, please note two fees in particular:

I. Public Hearing Noticing Fee, $215 per hearing: This fee will replace charges that were previously billed at an hourly rate plus direct expenses.

II. Planning Records Fee, $35 per entitlement: This fee is similar to the records imaging fee charged for building permits and offsets costs incurred for planning permit records management.

Deposits:

Further, I understand that my **initial deposit is a retainer and not a fee.** Each application requires a deposit. The total deposit amount is the sum of the deposits for each type of application requested. The deposit amount for each application type reflects the average amount of time spent to process a standard application of that type; the deposit neither reflects the individual aspects of a project that may extend the processing time nor is the deposit amount intended as a cap. **This deposit will set up an account, which shall be charged at the current hourly rate for all staff processing time.**

Further, I understand that **at the time that costs exceed the deposit amount, I will be billed monthly at the current hourly rate for the additional charges.** If the final costs are less than the deposit amount, the unused portion of the deposit will be returned to me at the conclusion of the process or final inspection of the completed project, whichever occurs later. (The necessary staff time will vary according to the complexity of the application and the project.) I must notify the City at least 30 days in advance of any project / entitlement transfers (e.g. change in ownership, etc.) and any changes to the applicant / owner / billing contact information.

Tasks Associated with Application Processing and Review:

Further, I understand that **staff processing time may include, but is not limited to:**

I. Initial review and ongoing processing by Planning, Building, Engineering, Transportation and Public Art Divisions and the City Attorney's Office, including but not limited to:

A. Reviewing plans / submittal packages

B. Routing plans to and communicating with inter-office departments and outside agencies

C. Researching documents relative to site history

D. Site visits

E. Consulting with applicant and/or other interested parties

F. Preparing environmental documents

G. Drafting of staff reports and resolutions

H. Preparing pertinent maps, graphs and exhibits

I. Attending meetings / public hearings before the Zoning Administrator / Commissions / Council

II. Plan checking subdivision, parcel and final maps and subdivision improvement plans by Planning and Engineering Divisions subsequent to receiving discretionary approvals.

PLEASE INITIAL BOX: ☐

STATEMENT OF UNDERSTANDING

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Work Order #: _____
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READ AND SIGN BY PERSON AUTHORIZED TO GUARANTEE PAYMENT

Tasks Associated with Application Processing and Review (Continued):

III. Plan checking building permits by Planning, Engineering, and Transportation Divisions and plan checking Site Development permits by Planning and Transportation Divisions, subsequent to receiving discretionary approvals;

IV. Final on-site inspections of the project by Planning, Engineering and Transportation Divisions;

V. Enforcement by Planning and Engineering Divisions of any conditions of approval imposed by the City.

I also understand that receipt of all discretionary approvals does not constitute an entitlement to begin work. Other approvals may be required from the Building and Engineering Divisions, Consolidated Fire District, Central Sanitary District, County Health Department, Water Districts and other agencies. Refer to the City Fee Schedule for other fees to be assessed prior to the issuance of project permits. These fees may include, but are not limited to:

1. Building Permit fees
2. Site Development Permit fees which may include street frontage improvements and undergrounding of utilities
3. Traffic Impact fees
4. Drainage fees
5. Parkland Dedication fees
6. Fire District, Flood Control District, Sanitary District, Water District, etc. fees
7. Filing and microfilming fees
8. Base Map Fee

Unpaid Balances and Penalties:

In addition, I understand and agree to the following:

I. Effective October 1, 2016, the City will charge interest at the rate of one percent (1%) per month on any unpaid planning application balances that are sixty (60) days or more in arrears.

II. Unpaid balances may be referred to a collections agency.

III. Failure to pay charges may halt or delay progress on the project and may result in a hold on any future permits at the property.

IV. If the City activates "locks" to halt work on projects due to unpaid balances, the City may require the payment of penalty fees and / or additional deposits in order to release "locks" and resume work.

I hereby guarantee, as authorized agent for the applicant, owner and project sponsors, that they individually and jointly assume full responsibility for all costs incurred by the City in processing this application. I understand and agree that late charges may accrue on unpaid balances, unpaid balances may be referred to a collections agency, and failure to pay all charges will result in a hold on any future permits at the property.

READ AND SIGN BY PERSON AUTHORIZED TO GUARANTEE PAYMENT
PLEASE PRINT AND COMPLETE SIGNATURE SECTIONS ON PAGES 1, 2 AND BELOW:

SIGNATURE: _____

DATE: 9/23/2021 PRINT NAME: HAMED ADIB

☒ Applicant ☐ Owner ☐ Architect ☐ Other: _____

FEES & DEPOSITS
Introduction & Schedule
City of Walnut Creek Planning
Division Effective July 2020-June 2021

Hourly Rate:

Processing of all development applications and appeals, such as General Plan amendments, Zoning Ordinance amendments, use permits, subdivisions, design review, environmental review and all other development review processing is charged at an hourly rate for required staff time. Charges for staff time spent processing this application will be based on the Council-approved fee schedule, which is currently an **hourly rate of $200.**

Fees & Deposits Schedule:

The 2020-2021 Fees & Deposits schedule, attached, has been updated to include Master Fee Schedule changes approved by City Council and effective September 7, 2020. Please review the new schedule for a complete list. Within that list, please note two fees in particular:

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Tasks Associated with Application Processing and Review:

Staff processing time may include, but is not limited to:

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A. Reviewing plans / submittal packages
B. Routing plans to and communicating with inter-office departments and outside agencies
C. Researching documents relative to site history
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E. Consulting with applicant and/or other interested parties
F. Preparing environmental documents
G. Drafting of staff reports and resolutions
H. Preparing pertinent maps, graphs and exhibits
I. Attending meetings / public hearings before the Zoning Administrator / Commissions / Council

II. Plan checking subdivision, parcel and final maps and subdivision improvement plans by Planning and Engineering Divisions subsequent to receiving discretionary approvals;
III. Plan checking building permits by Planning, Engineering and Transportation Divisions and plan checking Site Development permits by Planning and Transportation Divisions, subsequent to receiving all discretionary approvals;

IV. Final on-site inspections of the project by Planning, Engineering and Transportation Divisions;
V. Enforcement by Planning and Engineering Divisions of any conditions of approval imposed by the City.

Receipt of all discretionary approvals does not constitute an entitlement to begin work. Other approvals may be required from the Building and Engineering Divisions, Consolidated Fire District, Central Sanitary District, County Health Department, Water Districts and other agencies. Refer to the City Fee Schedule for other fees to be assessed prior to the issuance of project permits. These fees may include, but are not limited to:

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Effective October 1, 2016, the City will charge interest at the rate of one percent (1%) per month on any unpaid planning application balances that are sixty (60) days or more in arrears.

FEES & DEPOSITS
Introduction & Schedule
City of Walnut Creek Planning
Division Effective July 2020-June 2021

Applications	**Deposit**	**Rate**
Appeals, reconsiderations, and complaints (non-applicants only)	-	$205 (flat)
Public Hearing Noticing Fee	-	$215 per hearing
Public Hearing Publication Fee	-	Actual Cost
Environmental Review		
Environmental Assessment	$1,200	$200/hr
Probable Negative Declaration	$2,500	$200/hr
Environmental Impact Report	$5,000	$200/hr
Design Review		
Single Family Homes - Staff Design Review	$2,500	$200/hr
Single Family Homes - Design Review Commission	$5,000	$200/hr
New Buildings/Projects	$10,000	$200/hr
Small Additions/Remodel & Storefronts	$1,200	$200/hr
Awning & Canopy Permit	-	$200(flat)
Sign Review		
Freestanding Signs, Sign Programs & Exceptions	$1,200	$200/hr
Signs requiring staff approval only	-	$400 (flat fee) plus $30 per additional sign
Signs Subcommittee Review	$400	$200/hr
Sign Face Change Only	-	$100.00 (flat)
Sign Retrieval Fee	-	$100.00 (flat)
Signs installed without permit penalty	-	Actual Cost up to $700
Blade Sign	-	$200 (flat)
Pre-Application Review	$2,000	$200/hr
Zoning Amendment, Rezoning	$4,000	$200/hr
General Plan Amendment	$4,000	$200/hr
Subdivisions		
Tentative map (4 or fewer parcels)	$4,000	$200/hr
Tentative map (5 or more parcels)	$10,000	$200/hr
Minor Use Permit/Fence	$1,200	$200/hr
Use Permit	$2,500	$200/hr
Administrative Use Permit	$800	$200/hr

FEES & DEPOSITS
Introduction & Schedule
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Division Effective July 2020-June 2021

Banner Permit	-	$100.00(flat)
Grand Opening Permit	-	No Charge
Short Term Promotional / Temporary Activity Permit	-	$200(flat)
Variance	$2,500	$200/hr
Large Family Daycare Permit	$2,000	$200/hr
Annexation Requests	$2,000	$200/hr
Street Name & Number Change Requests	$1,200	$200/hr
Home Occupation Permit (Staff Review Only)	-	$100.00(flat)
Home Occupation Permit (Zoning Administrator Review)	$1,200	$200/hr
Sidewalk Dining Encroachment Permit	-	$200 per year
Wireless Antenna Requests (Design Review/Use Permit)	$5,000	$200/hr
Preliminary Review Team (PRT)		
Multi-Unit / -Family & Commercial, 1st Visit		$200 (flat)
Multifamily & Commercial, 2nd Visit (Pre-App)	$1,200	$200/hr
Single Family Dwelling, 1st Visit	-	No Charge
Single Family, 2nd Visit	-	$100.00(flat)
General Records Research (per hour plus actual cost of docs)	No charge 1st 15 minutes	$200/hr
Specific Records Research (per hour plus actual cost of docs)	-	$200/hr
Building Permit Planning Division Review	-	$200/hr w/W.O. or 15% of building plan check fee
Certificate of Zoning Status or Zoning Interpretation	$400	$200/hr, 2-hr minimum
Planning Records Fee (Per entitlement, i.e. GPA, RZ, CUP)	-	$35 per entitlement
Off-street Private Parking Lot Certification	-	$150 per lot
Private Lot Enforcement Certification	-	$295 (flat)
Subordination Agreement	-	$280 (flat)
First-Time Down Payment Assistance Loan	-	$280 (flat)

Commercial Cannabis Application Fee	-	$4,600 (flat)
Commercial Cannabis Operator's Permit Annual Renewal Fee	-	$10,500 (flat)
Commercial Cannabis Background Investigation Fee	-	$275.00 (flat)